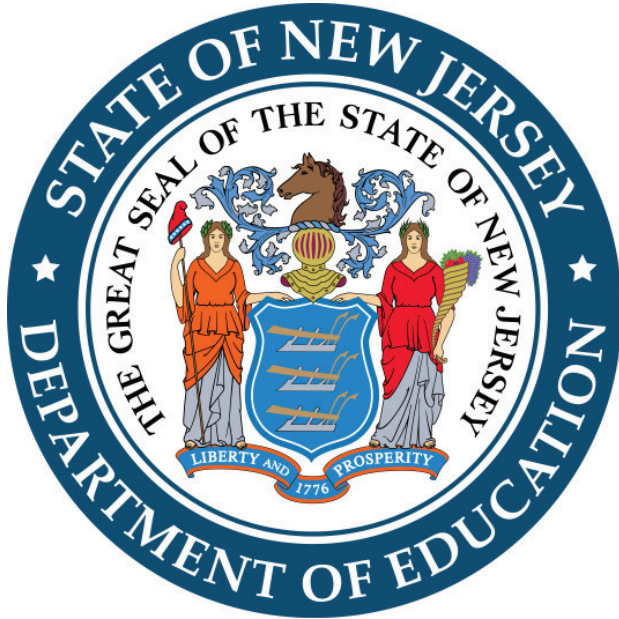




New Jersey
Student Learning
Assessments-Adaptive

Practice Test

English Language Arts

Grade 9

Student Name _____

Directions:

Today, you will take the Grade 9 English Language Arts Practice Test. If you do not know the answer to a question, skip it and go on to the next question. If you have time, go back to the questions you skipped and try to answer them before turning in your Student Test Booklet.

1. Read each passage and question. Then, follow the directions to answer each question.
2. Fill in the circle next to your answer choice or choices.
 - If you change your answer, make sure you erase your old answer completely.
 - Do not cross out or make any marks on the other choices.
3. One of the questions will ask you to write your answer.
 - Write your answer in the space provided in your Student Test Booklet.
 - Be sure to keep your answer within the provided space.

Sea Turtles

by Miles O'Brien and Marsha Walton

1 "There's no off-the-shelf . . . turtle bathing suit that we know about,"
laughed biologist Ken Lohmann, as he attached a soft cloth harness, or
bathing suit, to a three-month-old loggerhead turtle.

2 About a dozen of these young turtles "work" in Lohmann's University
of North Carolina (UNC) laboratory. With help from the National Science
Foundation (NSF), he's learning how these and other sea turtles use the
Earth's magnetic field for a journey of thousands of miles around the
Atlantic Ocean.

3 Loggerheads have no interaction with their parents. Females bury eggs
on the beach that hatch 50–60 days later. But the hatchlings seem to be
programmed with an astonishing "Survival To Do List."

Item One: Get out of Dodge

4 "The hatchling turtles start life with a supply of yolk attached to their
bellies," said Lohmann. "And during the first several days of their lives,
they don't stop to eat. All they do is migrate offshore. Their entire survival
strategy seems to be predicated on the idea that the faster you get away
from land, the better," he said.

5 In these first few frenzied days, the yolk sac provides nutrition, and the
hatchlings guide themselves offshore by instinctively swimming into waves.
This gets them away from shallow waters and numerous predators.

Item Two: Follow the Magnetic Field

6 "We've found over the years that one of the turtles' main tricks for
navigation is that they are exquisitely sensitive to the Earth's magnetic field,"
said Lohmann.

7 Knowing when and where to turn is critical in the five-to-10-year journey
that takes them from the east coast of the United States to the coast of
Portugal, south toward the west coast of Africa, then back toward the beach
where they were born.

8 For example, there's a magnetic field off Portugal that triggers the turtles
to turn south. If they don't, they'll likely be swept into frigid waters off Great
Britain and Scandinavia, and die.

9 "In one experiment, we exposed young turtles that had never before
been in the ocean to magnetic fields that exist at three widely separated
locations along their migratory route," said Lohmann.

- 10 The large majority of the South Florida-hatched turtles in that experiment—whether exposed to the fields they would encounter off Florida, Portugal or Africa—swam in the proper direction to complete their circular route around the Atlantic.
- 11 “We were astonished! It really was a very surprising and exciting finding,” said Lohmann.
- 12 “The results implied that the turtles can actually distinguish among the magnetic fields that exist in different geographic locations and, what’s more, they seem to use these fields as a system of navigational markers that help them complete their migration,” he said.
- 13 Lohmann said the turtles go beyond using the magnetic field as a compass. They also use it as a source of positional and geographic information.
- 14 “In effect, sea turtles have a crude global positioning system that is based on the Earth’s magnetic field,” said Lohmann.
- 15 A better understanding of this turtle ability could help in research of both animal and human navigation. Some other animals, from salmon to spiny lobsters to migratory salamanders, might also use the Earth’s magnetic field in similar ways.
- 16 Another experiment in the Lohmann lab tests how the turtles respond to wave motion. Looking at these turtle “athletes” is rather odd. Outfitted in their “bathing suits” and suspended on a mechanical wave simulator that moves them in circles, the turtles “swim”—without any water! . . .
- 17 “The turtles will actually act out their swimming behavior in air,” said Lohmann. “When a turtle first enters the ocean, the signal that tells it to begin swimming is the absence of any contact with the substrate. Young turtles are positively buoyant, so they float up when they enter the water, and as soon as nothing is touching the underside of a turtle, it begins to swim.”
- 18 “In shallow coastal areas, waves reliably approach the land from the deep water, so swimming into waves reliably guides turtles offshore,” said Lohmann.
- 19 As hatchlings, the turtles in the UNC-Chapel Hill lab are tested for about 15 minutes on the “wave simulator” in a typical experiment. Older turtles might spend an hour to an hour and a half swimming (or “air swimming”) for this navigation research.
- 20 It’s a pretty good gig. None of the turtles in this lab would have survived without human intervention.

- 21 Of about 100 baby turtles that hatch out of eggs in a typical sea turtle nest, some are too weak to crawl to the surface of the sand. The turtles in this UNC study were all rescued from nests on North Carolina beaches. Once rehabilitated and healthy, they will work in Lohmann's lab for a couple of years and then be released into the Atlantic.
- 22 Lohmann's study of animals and magnetism began when he was studying neurobiology, working with sea slugs as a graduate student. Two decades later, he is still helping to unlock answers.
- 23 The dramatic connection between turtles and magnetic fields is already altering conservation efforts for these reptiles.
- 24 "When we think about preserving habitats for animals, we normally gravitate toward traditional descriptions of the environment: What sorts of plants are there, what the humidity is, what sort of climate exists. But when you learn more about particular species, you discover that the list of criteria for what constitutes an environment may be somewhat different. In the case of the turtles, it has become evident that the magnetic field has to be taken into consideration," said Lohmann.
- 25 There's already been a change in procedure for some sea turtle rescue groups who monitor turtle nests. Historically, these scientists and volunteers would put wire mesh screens over the nests to keep predators like raccoons from eating the eggs. But now that it is known that these metal coverings could alter the developing turtle's magnetic "imprint," the conservation practice has changed. South Carolina, for instance, has replaced metal protective cages with plastic ones.
- 26 Loggerheads, leatherbacks and other sea turtles are threatened in many parts of the world. As someone who has cared for lizards, snakes, frogs, toads and turtles since he was a kid, Lohmann believes his work will be part of the solution.
- 27 "The people who are involved in our research usually are passionate about both science and conservation. They enjoy the challenge of trying to figure out things that are very difficult to learn about. At the same time, they are deeply devoted to the welfare of animals. We really like sea turtles and want to see them prosper in the future. Part of the fun for us is using our scientific expertise to do research that promotes sea turtle conservation," said Lohmann.

Excerpt from "Sea Turtles" by Miles O'Brien and Marsha Walton. In the public domain.

1. How do the authors support the claim that conservation practices have changed as a result of sea turtle research?
- Ⓐ with scientific data
 - Ⓑ with expert testimony
 - Ⓒ with a practical example
 - Ⓓ with close-up observation
2. Select **three** details from the passage that should be included in a summary.
- Ⓐ “‘There’s no off-the-shelf . . . turtle bathing suit that we know about,’ laughed biologist Ken Lohmann, as he attached a soft cloth harness, or bathing suit, to a three-month-old loggerhead turtle.” (paragraph 1)
 - Ⓑ “But the hatchlings seem to be programmed with an astonishing ‘Survival To Do List.’” (paragraph 3)
 - Ⓒ “‘We’ve found over the years that one of the turtles’ main tricks for navigation is that they are exquisitely sensitive to the Earth’s magnetic field,’ said Lohmann.” (paragraph 6)
 - Ⓓ “For example, there’s a magnetic field off Portugal that triggers the turtles to turn south.” (paragraph 8)
 - Ⓔ “‘The turtles will actually act out their swimming behavior in air,’ said Lohmann.” (paragraph 17)
 - Ⓕ “The dramatic connection between turtles and magnetic fields is already altering conservation efforts for these reptiles.” (paragraph 23)
 - Ⓖ “‘The people who are involved in our research usually are passionate about both science and conservation.’” (paragraph 27)

3. What evidence do the authors provide to support the claim that sea turtle hatchlings are born with survival skills?
- Ⓐ the similarity of sea turtles to other animals
 - Ⓑ the way the egg yolk sac can be used for nutrition
 - Ⓒ the amount of time it takes eggs to hatch after they are buried
 - Ⓓ the absence of interaction between baby turtles and their parents
4. Select **two** ways paragraphs 7 and 8 help the reader understand Lohmann's scientific findings.
- Ⓐ by explaining why sea turtles prefer shallow waters
 - Ⓑ by highlighting the importance of magnetic field triggers
 - Ⓒ by comparing the strength of each of the magnetic fields
 - Ⓓ by showing how sea turtles decide where to lay their eggs
 - Ⓔ by describing the scope of the migration route of sea turtles
5. Read the sentence from the passage.

"Outfitted in their 'bathing suits' and suspended on a mechanical wave simulator that moves them in circles, the turtles 'swim'—without any water!" (paragraph 16)

What does the word simulator mean as it is used in the sentence?

- Ⓐ a method used for tracking
- Ⓑ a machine used for imitation
- Ⓒ a device used for encouragement
- Ⓓ a tool used for long-distance transportation

6. Read the sentence from the passage.

“But when you learn more about particular species, you discover that the list of criteria for what constitutes an environment may be somewhat different.” (paragraph 24)

What does constitutes mean as it is used in the sentence?

- Ⓐ controls
 - Ⓑ empowers
 - Ⓒ makes up
 - Ⓓ protects
7. How does paragraph 24 develop the author’s ideas about sea turtles?
- Ⓐ It describes the major threats to sea turtle habitats.
 - Ⓑ It demonstrates the practical relevance of research on sea turtles.
 - Ⓒ It lists the difficulties of conducting scientific research on sea turtles.
 - Ⓓ It compares the advantages of different sea turtle conservation methods.

8. This question has two parts. First, answer Part A. Then, answer Part B.

Part A

What is a central idea of the passage?

- Ⓐ Sea turtles change their migration patterns as they age.
- Ⓑ Sea turtles can be rehabilitated using newly discovered methods.
- Ⓒ Sea turtles use magnetic fields to navigate along their migration routes.
- Ⓓ Sea turtles are taught to swim at an early age in order to escape predators.

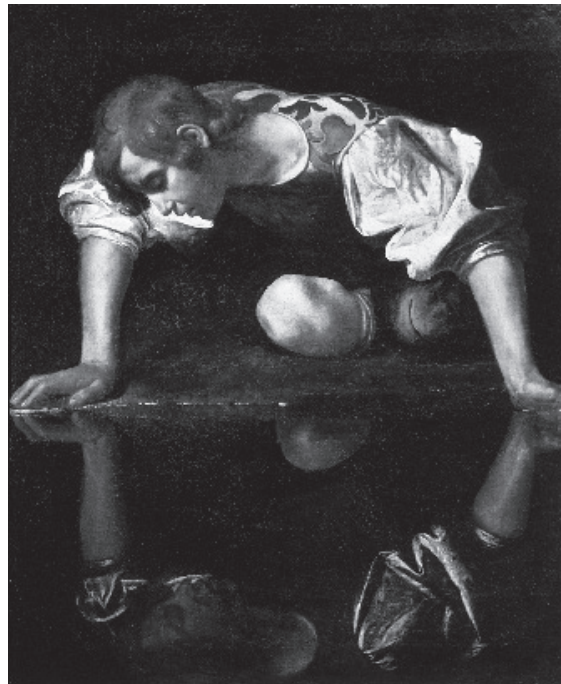
Part B

Which sentence from the passage develops the central idea in Part A?

- Ⓐ ““Their entire survival strategy seems to be predicated on the idea that the faster you get away from land, the better,” he said.” (paragraph 4)
- Ⓑ ““In effect, sea turtles have a crude global positioning system that is based on the Earth’s magnetic field,” said Lohmann.” (paragraph 14)
- Ⓒ “Older turtles might spend an hour to an hour and a half swimming (or ‘air swimming’) for this navigation research.” (paragraph 19)
- Ⓓ “Lohmann’s study of animals and magnetism began when he was studying neurobiology, working with sea slugs as a graduate student.” (paragraph 22)

Passage 1: Narcissus Myth

retold by Edith Hamilton



***Narcissus* by Michelangelo Caravaggio**

- 1 The hero of it was a beautiful lad, whose name was Narcissus. His beauty was so great, all the girls who saw him longed to be his, but he would have none of them. He would pass the loveliest carelessly by, no matter how much she tried to make him look at her. Heartbroken maidens were nothing to him. Even the sad case of the fairest of the nymphs,¹ Echo, did not move him. She was a favorite of Artemis, the goddess of woods and wild creatures, but she came under the displeasure of a still mightier goddess, Hera herself, who was at her usual occupation of trying to discover what Zeus was about. She suspected that he was in love with one of the nymphs and she went to look them over to try to discover which. However, she was immediately diverted from her investigation by Echo's gay chatter. As she listened amused, the others silently stole away and Hera could come to no conclusion as to where Zeus's wandering fancy had alighted. With her usual injustice she turned against Echo. That nymph became yet another unhappy girl that Hera punished. The goddess condemned her never to use her tongue again except to repeat what was said to her. "You will always have the last word," Hera said, "but no power to speak first."

¹nymphs: nature spirits

- 2 This was very hard, but hardest of all when Echo, too, with all the other lovelorn maidens, loved Narcissus. She could follow him, but she could not speak to him. How then could she make a youth who never looked at a girl pay attention to her? One day, however, it seemed her chance had come. He was calling his companions, "Is anyone here?" and she called back in rapture, "Here—Here." She was still hidden by the trees so that he did not see her, and he shouted, "Come!"—just what she longed to say to him. She answered joyfully, "Come!" and stepped forth from the woods with her arms outstretched. But he turned away in angry disgust. "Not so," he said; "I will die before I give you power over me." All she could say was, humbly, entreatingly, "I give you power over me," but he was gone. She hid her blushes and her shame in a lonely cave, and never could be comforted. Still she lived in places like that, and they say that she has so wasted away with longing that only her voice now is left to her.
- 3 So Narcissus went on his cruel way, a scorner of love. But at last one of those he wounded prayed a prayer and it was answered by the gods: "May he who loves not others love himself." The great goddess Nemesis, which means righteous anger, undertook to bring this about. As Narcissus bent over a clear pool for a drink and saw there his own reflection, on the moment he fell in love with it. "Now I know," he cried, "what others have suffered from me, for I burn with love of my own self—and yet how can I reach that loveliness I see mirrored in the water? But I cannot leave it. Only death can set me free." And so it happened. He pined away, leaning perpetually over the pool, fixed in one long gaze. Echo was near him, but she could do nothing; only when, dying, he called to his image, "Farewell—farewell," she could repeat the words as a last good-by to him.

"Narcissus Myth" from *Mythology* by Edith Hamilton. Copyright © 1942 by Little, Brown and Company. Reprinted by permission of Little, Brown and Company. *Narcissus* by Michelangelo Caravaggio. In the public domain.

Passage 2: The Disciple

by Oscar Wilde

- 4 When Narcissus died the pool of his pleasure changed from a cup of sweet waters into a cup of salt tears, and the Oreads¹ came weeping through the woodland that they might sing to the pool and give it comfort.
- 5 And when they saw that the pool had changed from a cup of sweet waters into a cup of salt tears, they loosened the green tresses of their hair and cried to the pool and said, "We do not wonder that you should mourn in this manner for Narcissus, so beautiful was he."
- 6 "But was Narcissus beautiful?" said the pool.

- 7 "Who should know that better than you?" answered the Oreads. "Us did he ever pass by, but you he sought for, and would lie on your banks and look down at you, and in the mirror of your waters he would mirror his own beauty."
- 8 And the pool answered, "But I loved Narcissus because, as he lay on my banks and looked down at me, in the mirror of his eyes I saw ever my own beauty mirrored."

¹Oreads: nymphs of mountains or hills

"The Disciple" by Oscar Wilde. In the public domain.

9. In "Narcissus Myth," how does the prayer Nemesis answers affect Narcissus?
- Ⓐ He reflects on the life he could have led.
 - Ⓑ He sees the reflection of Echo in the pool.
 - Ⓒ He looks to Echo in his final moments of life.
 - Ⓓ He understands how he is perceived by others.
10. In "Narcissus Myth," what does Hera's treatment of Echo reveal about Hera?
- Ⓐ She is upset with Zeus.
 - Ⓑ She is an unfair goddess.
 - Ⓒ She is an enemy of Artemis.
 - Ⓓ She is friends with many nymphs.

11. This question has two parts. First, answer Part A. Then, answer Part B.

Part A

Read the sentence from paragraph 2 of “Narcissus Myth.”

“He was calling his companions, ‘Is anyone here?’ and she called back in rapture, ‘Here—Here.’”

What does the phrase in rapture mean as it is used in the sentence?

- Ⓐ with delight
- Ⓑ at a slow pace
- Ⓒ with confusion
- Ⓓ at a low volume

Part B

Select **two** phrases from paragraph 2 that support the answer in Part A.

- Ⓐ “called back”
- Ⓑ “still hidden”
- Ⓒ “did not see her”
- Ⓓ “answered joyfully”
- Ⓔ “from the woods”
- Ⓕ “arms outstretched”

12. This question has two parts. First, answer Part A. Then, answer Part B.

Part A

In “Narcissus Myth,” how is the reader’s understanding of Echo different from Narcissus’s understanding of Echo?

- Ⓐ The reader does not know that Echo admires the beauty of Narcissus, but Narcissus knows this.
- Ⓑ The reader knows the feelings that Echo wants to express, but Narcissus does not know this.
- Ⓒ The reader does not know Echo has a limited power to speak, but Narcissus knows this.
- Ⓓ The reader knows that Echo is a nymph, but Narcissus does not know this.

Part B

How does the difference described in Part A affect the tone of the passage?

- Ⓐ It creates a humorous tone because of Narcissus’s love of himself.
- Ⓑ It creates an inspiring tone because of Echo’s determination to speak.
- Ⓒ It creates an angry tone because of Narcissus’s negative attitude toward others.
- Ⓓ It creates a hopeless tone because of Echo’s inability to speak in her own words.

13. Fill in the circle **before** the sentence from paragraph 3 of “Narcissus Myth” that **best** explains what causes Narcissus to become obsessed with looking at himself.

3 Ⓐ So Narcissus went on his cruel way, a scorner of love. Ⓑ But at last one of those he wounded prayed a prayer and it was answered by the gods: “May he who loves not others love himself.” Ⓒ The great goddess Nemesis, which means righteous anger, undertook to bring this about. Ⓓ As Narcissus bent over a clear pool for a drink and saw there his own reflection, on the moment he fell in love with it. Ⓔ “Now I know,” he cried, “what others have suffered from me, for I burn with love of my own self—and yet how can I reach that loveliness I see mirrored in the water? Ⓕ But I cannot leave it. Ⓖ Only death can set me free.” Ⓗ And so it happened. Ⓘ He pined away, leaning perpetually over the pool, fixed in one long gaze. Ⓝ Echo was near him, but she could do nothing; only when, dying, he called to his image, “Farewell—farewell,” she could repeat the words as a last good-by to him.

14. Which statement accurately explains why the Oreads are surprised by the pool’s reaction to Narcissus’s death in “The Disciple”?
- Ⓐ The Oreads had thought that the pool did not know that Narcissus died, but the pool does know this.
 - Ⓑ The Oreads had thought that the pool was filled with Narcissus’s tears, but the tears are not from Narcissus.
 - Ⓒ The Oreads had thought that the pool would need to be comforted because Narcissus died, but the pool does not know Narcissus.
 - Ⓓ The Oreads had thought that the pool was sad about losing Narcissus’s beauty, but the pool is sad about losing the opportunity to view itself.

Directions:

Read the writing prompt and sources. Then write your final essay on pages 27 through 29. Check over your essay when you are finished.

Writing Prompt

Write a letter to your state senator in which you argue in favor of keeping the Electoral College or changing to election by popular vote for the president of the United States. Use information from the sources in your essay.

Manage your time carefully so that you can

- read the sources;
- plan your response;
- write your response; and
- revise and edit your response.

Be sure to

- include a claim;
- address counterclaims;
- use evidence from multiple sources; and
- avoid overly relying on one source.

Your response should be in the form of a multiparagraph essay. Write your response in the space provided.

Does the Electoral College Work?

Source 1: What Is the Electoral College?

by the Office of the Federal Register

- 1 The Electoral College is a process, not a place. The founding fathers established it in the Constitution as a compromise between election of the President by a vote in Congress and election of the President by a popular vote of qualified citizens.
- 2 The Electoral College process consists of the selection of the electors, the meeting of the electors where they vote for President and Vice President, and the counting of the electoral votes by Congress.
- 3 The Electoral College consists of 538 electors. A majority of 270 electoral votes is required to elect the President. Your state's entitled allotment of electors equals the number of members in its Congressional delegation: one for each member in the House of Representatives plus two for your Senators. . . .
- 4 Under the 23rd Amendment of the Constitution, the District of Columbia is allocated 3 electors and treated like a state for purposes of the Electoral College. For this reason, in the following discussion, the word "state" also refers to the District of Columbia.
- 5 Each candidate running for President in your state has his or her own group of electors. The electors are generally chosen by the candidate's political party, but state laws vary on how the electors are selected and what their responsibilities are. . . .
- 6 The presidential election is held every four years on the Tuesday after the first Monday in November. You help choose your state's electors when you vote for President because when you vote for your candidate you are actually voting for your candidate's electors.
- 7 Most states have a "winner-take-all" system that awards all electors to the winning presidential candidate. However, Maine and Nebraska each have a variation of "proportional representation." . . .
- 8 After the presidential election, your governor prepares a "Certificate of Ascertainment" listing all of the candidates who ran for President in your state along with the names of their respective electors. The Certificate of Ascertainment also declares the winning presidential candidate in your

state and shows which electors will represent your state at the meeting of the electors in December of the election year. Your state's Certificates of Ascertainments are sent to the Congress and the National Archives as part of the official records of the presidential election.

Excerpt from "What Is the Electoral College?" by the Office of the Federal Register, from www.archives.gov/federal-register/electoral-college/about.html. In the public domain.

Source 2: The Indefensible Electoral College: Why even the best-laid defenses of the system are wrong

by Bradford Plumer

- 9 What have Richard Nixon, Jimmy Carter, Bob Dole, the U.S. Chamber of Commerce, and the AFL-CIO all, in their time, agreed on? Answer: Abolishing the electoral college! They're not alone; according to a Gallup poll in 2000, taken shortly after Al Gore—thanks to the quirks of the electoral college—won the popular vote but lost the presidency,¹ over 60 percent of voters would prefer a direct election to the kind we have now. This year voters can expect another close election in which the popular vote winner could again lose the presidency. And yet, the electoral college still has its defenders. What gives? . . .

What's wrong with the electoral college

- 10 Under the electoral college system, voters vote not for the president, but for a slate of electors, who in turn elect the president. If you lived in Texas, for instance, and wanted to vote for [John] Kerry,² you'd vote for a slate of 34 Democratic electors pledged to Kerry. On the off-chance that those electors won the statewide election, they would go to Congress and Kerry would get 34 electoral votes. Who are the electors? They can be anyone not holding public office. Who picks the electors in the first place? It depends on the state. Sometimes state conventions, sometimes the state party's central committee, sometimes the presidential candidates themselves. Can voters control whom their electors vote for? Not always. Do voters sometimes get confused about the electors and vote for the wrong candidate? Sometimes.

¹lost the presidency: In the 2000 U.S. presidential race, Al Gore received more individual votes than George W. Bush nationwide, but Bush won the election, receiving 271 electoral votes to Gore's 266.

²John Kerry: Kerry ran for President against George W. Bush (43rd president of the United States), representing the Democratic Party in 2004.

- 11 The single best argument *against* the electoral college is what we might call the disaster factor. The American people should consider themselves lucky that the 2000 fiasco was the biggest election crisis in a century; the system allows for much worse. Consider that state legislatures are technically responsible for picking electors, and that those electors could always defy the will of the people. Back in 1960, segregationists³ in the Louisiana legislature nearly succeeded in replacing the Democratic electors with new electors who would oppose John F. Kennedy. (So that a popular vote for Kennedy would not have actually gone to Kennedy.) In the same vein, “faithless” electors have occasionally refused to vote for their party’s candidate and cast a deciding vote for whomever they please. . . . Oh, and what if a state sends *two* slates of electors to Congress? It happened in Hawaii in 1960. Luckily, Vice President Richard Nixon, who was presiding over the Senate, validated only his opponent’s electors, but he made sure to do so “without establishing a precedent.” What if it happened again?
- 12 Perhaps most worrying is the prospect of a tie in the electoral vote. In that case, the election would be thrown to the House of Representatives, where state delegations vote on the president. (The Senate would choose the vice-president.) Because each state casts only one vote, the single representative from Wyoming, representing 500,000 voters, would have as much say as the 55 representatives from California, who represent 35 million voters. Given that many voters vote one party for president and another for Congress, the House’s selection can hardly be expected to reflect the will of the people. And if an electoral tie seems unlikely, consider this: In 1968, a shift of just 41,971 votes would have deadlocked the election; In 1976, a tie would have occurred if a mere 5,559 voters in Ohio and 3,687 voters in Hawaii had voted the other way. The election is only a few swing voters away from catastrophe.
- 13 At the most basic level, the electoral college is unfair to voters. Because of the winner-take-all system in each state, candidates don’t spend time in states they know they have no chance of winning, focusing only on the tight races in the “swing” states. During the 2000 campaign, seventeen states didn’t see the candidates at all, including Rhode Island and South Carolina, and voters in 25 of the largest media markets didn’t get to see a single campaign ad. If anyone has a good argument for putting the fate of the presidency in the hands of a few swing voters in Ohio, they have yet to make it. . . .

³ segregationists: people who favored separation based on race

- 14 It's official: The electoral college is unfair, outdated, and irrational. The best arguments in favor of it are mostly assertions without much basis in reality. And the arguments against direct elections are spurious at best. It's hard to say this, but Bob Dole was right: Abolish the electoral college!

Excerpt from "The Indefensible Electoral College: Why even the best-laid defenses are wrong" from *Mother Jones* by Bradford Plumer. Copyright © 2004 by Mother Jones and the Foundation for National Progress. All Rights Reserved.

Source 3: In Defense of the Electoral College: Five reasons to keep our despised method of choosing the President

by Judge Richard A. Posner

- 15 The Electoral College is widely regarded as an anachronism,¹ a non-democratic method of selecting a president that ought to be [overruled] by declaring the candidate who receives the most popular votes the winner. The advocates of this position are correct in arguing that the Electoral College method is not democratic in a modern sense . . . it is the electors who elect the president, not the people. When you vote for a presidential candidate you're actually voting for a slate of electors.
- 16 But each party selects a slate of electors trusted to vote for the party's nominee (and that trust is rarely betrayed) . . . [; however,] it is entirely possible that the winner of the electoral vote will not win the national popular vote. Yet that has happened very rarely. It happened in 2000, when Gore had more popular votes than Bush yet fewer electoral votes, but that was the first time since 1888.
- 17 There are five reasons for retaining the Electoral College despite its lack of democratic pedigree;² all are practical reasons, not liberal or conservative³ reasons.

¹anachronism: a person or a thing that seems to belong to the past and not to fit in the present

²pedigree: the origin and history of something, especially when it is good or impressive

³liberal or conservative: political philosophies commonly seen as opposite each other

1) Certainty of Outcome

- 18 A dispute over the outcome of an Electoral College vote is possible—it happened in 2000—but it’s less likely than a dispute over the popular vote. The reason is that the winning candidate’s share of the Electoral College invariably exceeds his share of the popular vote. In [2012’s] election, for example, Obama⁴ received 61.7 percent of the electoral vote compared to only 51.3 percent of the popular votes cast for him and Romney.⁵ . . . Because almost all states award electoral votes on a winner-take-all basis, even a very slight plurality⁶ in a state creates a landslide electoral-vote victory in that state. A tie in the nationwide electoral vote is possible because the total number of votes—538—is an even number, but it is highly unlikely. . . .

2) Everyone’s President

- 19 The Electoral College requires a presidential candidate to have trans-regional appeal. No region (South, Northeast, etc.) has enough electoral votes to elect a president. So a solid regional favorite, such as Romney was in the South, has no incentive to campaign heavily in those states, for he gains no electoral votes by increasing his plurality in states that he knows he will win. This is a desirable result because a candidate with only regional appeal is unlikely to be a successful president. The residents of the other regions are likely to feel disenfranchised—to feel that their votes do not count, that the new president will have no regard for their interests, that he really isn’t their president.

3) Swing States

- 20 The winner-take-all method of awarding electoral votes induces the candidates—as we saw in [2012’s] election—to focus their campaign efforts on the toss-up states Voters in toss-up states are more likely to pay close attention to the campaign—to really listen to the competing candidates—knowing that they are going to decide the election. They are likely to be the most thoughtful voters, on average (and for the further reason that they will have received the most information and attention from the candidates), and the most thoughtful voters should be the ones to decide the election.

⁴Obama: Barack Obama, 44th president of the United States

⁵Romney: Mitt Romney, the Republican nominee for President in 2012

⁶plurality: when a candidate receives more votes than other candidates while not receiving a clear majority of votes

4) Big States

- 21 The Electoral College restores some of the weight in the political balance that large states (by population) lose by virtue of the mal-apportionment of the Senate decreed in the Constitution. . . . The popular vote was very close in Florida [in 2012]; nevertheless Obama, who won that vote, got 29 electoral votes. A victory by the same margin in Wyoming would net the winner only 3 electoral votes. So, other things being equal, a large state gets more attention from presidential candidates in a campaign than a small state does. . . .

5) Avoid Run-Off Elections

- 22 The Electoral College avoids the problem of elections in which no candidate receives a majority of the votes cast. For example, Nixon in 1968 and Clinton in 1992 both had only a 43 percent plurality of the popular votes, while winning a majority in the Electoral College (301 and 370 electoral votes, respectively). There is pressure for run-off elections when no candidate wins a majority of the votes cast; that pressure, which would greatly complicate the presidential election process, is reduced by the Electoral College, which invariably produces a clear winner. . . .
- 23 It can be argued that the Electoral College method of selecting the president may turn off potential voters for a candidate who has no hope of carrying their state—Democrats in Texas, for example, or Republicans in California. Knowing their vote will have no effect, they have less incentive to pay attention to the campaign than they would have if the president were picked by popular vote But of course no voter's vote swings a national election, and in spite of that, about one-half the eligible American population did vote in [2012's] election. Voters in presidential elections are people who want to express a political preference rather than people who think that a single vote may decide an election. . . .

Excerpt from "In Defense of the Electoral College: Five reasons to keep our despised method of choosing the President" from *Slate Magazine* by Judge Richard A. Posner. Copyright © 2012.

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Paper Practice Test Answer and Alignment Document: ELA

Grade 9 Reading

Passage: Sea Turtles

Item Sequence	Answer Key	Standards Alignment
1	C	RI.AA.9-10.7
2	B, C, F	RI.CI.9-10.2
3	D	RI.CR.9-10.1
4	B, E	RI.TS.9-10.4
5	B	L.VL.9-10.3
6	C	L.VL.9-10.3
7	B	RI.TS.9-10.4
8	Part A: C Part B: B	RI.CI.9-10.2

Passage 1: Narcissus Myth

Passage 2: The Disciple

Item Sequence	Answer Key	Standards Alignment
9	D	RL.IT.9-10.3
10	B	RL.IT.9-10.3
11	Part A: A Part B: D, F	L.VL.9-10.3
12	Part A: B Part B: D	RL.IT.9-10.3
13	<i>The student's response contains one of the following selections:</i> • But at last one of those he wounded prayed a prayer and it was answered by the gods: "May he who loves not others love himself." • The great goddess Nemesis, which means righteous anger, undertook to bring this about.	RL.CR.9-10.1
14	D	RL.PP.9-10.5

Grade 9 Writing

Source 1: What Is the Electoral College?

Source 2: The Indefensible Electoral College: Why even the best-laid defenses of the system are wrong

Source 3: In Defense of the Electoral College: Five reasons to keep our despised method of choosing the President

Item Sequence	Answer Key	Standards Alignment
1	Refer to the high school argumentative writing rubric.	W.AW.9-10.1